

City of Sand City

Memorandum of Understanding
Police Officers Association (POA)
July 1, 2024 through June 30, 2027

Article 1 — Recognition & Scope

Section 1.1. The City of Sand City recognizes the Sand City Police Officers Association (POA) as the exclusive bargaining representative for all sworn personnel below the rank of Lieutenant, including the classifications of Police Officer, Corporal, and Sergeant, for the term of this Memorandum of Understanding (MOU), July 1, 2024 through June 30, 2027. Recognition extends to all matters within the scope of representation, including wages, hours, and other terms and conditions of employment. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Section 1.2. This MOU constitutes the entire agreement between the parties and supersedes all prior agreements, side letters, memoranda, and past practices except where expressly incorporated by reference. No amendment shall be binding unless reduced to writing and signed by authorized representatives of both parties. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Section 1.3. Should any provision of this MOU be held invalid by a court of competent jurisdiction, the remainder shall continue in full force and effect, and the parties shall meet within thirty (30) days to

negotiate a replacement provision. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Article 2 — Definitions

Section 2.1. 'Base Hourly Rate' means the employee's hourly rate of pay as set forth in the salary schedule in Appendix A, exclusive of any premium, differential, incentive, or allowance, and before application of any multiplier. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 2.2. 'Regular Rate of Pay' means the base hourly rate plus those premiums required by the Fair Labor Standards Act to be included in the regular rate for purposes of computing overtime. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Section 2.3. 'Immediate Family' means a spouse, registered domestic partner, child, stepchild, parent, stepparent, sibling, grandparent, grandchild, or the equivalent relation of the employee's spouse or registered domestic partner. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither

the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 2.4. 'Shift' means the continuous period of assigned duty. 'Day Shift' means 0600 to 1400 hours; 'Swing Shift' means 1400 to 2200 hours; 'Graveyard Shift' means 2200 to 0600 hours. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Section 2.5. 'Seniority' means continuous service in a sworn classification with the City, measured from the date of sworn appointment, excluding unpaid leaves in excess of thirty (30) consecutive days. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Article 3 — Salary & Wages

Section 3.1. Base Salary Schedule. Employees shall be compensated according to the salary schedule set forth in Appendix A, consisting of five steps (A through E) per classification. Advancement of one step shall occur upon each year of satisfactory service until the top step is reached, subject to a satisfactory performance evaluation on file. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor

Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 3.2. Cost of Living Adjustment (COLA). Effective the first full pay period in July of each year of this agreement, base salaries shall increase by three percent (3.0%) in 2024, three percent (3.0%) in 2025, and three and one-half percent (3.5%) in 2026. COLA increases shall apply to all steps of the salary schedule. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 3.3. Bilingual Premium. Employees certified as bilingual by the Department and regularly assigned to use a second language in the course of their duties shall receive a five percent (5%) premium added to their base hourly rate. This premium shall be factored into the base rate before any shift differential or holiday multiplier is applied. Certification shall be re-tested every three (3) years. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Section 3.4. Acting Pay. An employee assigned in writing to perform the duties of a higher classification for more than five (5) consecutive shifts shall receive the base rate of the higher classification for all hours so assigned, retroactive to the first shift of the assignment. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 3.5. Payday. Employees shall be paid bi-weekly, twenty-six (26) times per year. Each bi-weekly pay period consists of eighty (80) regularly scheduled hours. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Article 4 — Overtime & Callback

Section 4.1. Overtime. All hours worked in excess of the regularly scheduled shift, or in excess of forty (40) hours in a designated work week, shall be compensated at one and one-half (1.5) times the employee's regular rate of pay. Overtime must be authorized in advance by a supervisor except in exigent circumstances. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milius-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Section 4.2. Court Time. An employee required to appear in court during off-duty hours shall receive a minimum of three (3) hours of pay at the overtime rate, regardless of the actual time spent, and shall be compensated for actual time in excess of three hours. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 4.3. Callback. An employee called back to duty after completing a shift and having left the workplace shall receive a minimum of four (4) hours of pay at the overtime rate. Callback pay shall not apply to an employee held over contiguous with a scheduled shift. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 4.4. Compensatory Time. In lieu of cash overtime, an employee may elect compensatory time off at the rate of one and one-half (1.5) hours for each overtime hour worked, accrued to a maximum of one hundred twenty (120) hours. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Section 4.5. Standby. An employee placed on standby shall receive two (2) hours of straight time pay for each twenty-four (24) hour period of standby assignment. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Article 5 — Holidays & Holiday Pay

Section 5.1. Recognized Holidays. The City recognizes twelve (12) paid holidays per year as listed in Appendix B, including New Year's Day, Martin Luther King Jr. Day, Presidents' Day, Memorial Day, Independence Day, Labor Day, Veterans Day, Thanksgiving Day and the day following, and Christmas Day. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a

manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Section 5.2. Holiday Work Premium. Sworn personnel mandated to work on a recognized City holiday shall receive their base hourly rate plus a holiday premium of one and one-half (1.5) times their base rate for all hours worked on that holiday, for a total of two and one-half (2.5) times the base rate. The holiday premium shall be applied after any applicable shift differential or bilingual premium has been incorporated into the base rate. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Section 5.3. Holiday in Lieu. Personnel whose regular day off falls on a recognized holiday shall receive an alternate paid day off, to be scheduled by mutual agreement within ninety (90) days of the holiday. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 5.4. Holiday Bank. Employees assigned to shifts that operate continuously may elect to bank holiday hours, to a maximum of ninety-six (96) hours, payable upon separation at the employee's then-current base rate. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by

law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Article 6 — Shift Differentials

Section 6.1. Graveyard Differential. Personnel assigned to the graveyard shift (2200 to 0600 hours) shall receive a shift differential of five and one-half percent (5.5%) applied to their base hourly rate for all hours worked on that shift. The differential shall be applied to base pay before any holiday multiplier is calculated. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Section 6.2. Swing Differential. Personnel assigned to the swing shift (1400 to 2200 hours) shall receive a shift differential of three percent (3.0%) applied to their base hourly rate for all hours worked on that shift. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 6.3. Stacking Limitation. Shift differentials apply to base pay only and shall not be applied to flat-dollar premiums such as the Field Training Officer premium or the K-9 handler premium. Under no circumstances shall a percentage differential be applied to a flat-dollar premium. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City

shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Section 6.4. Eligibility. A shift differential is payable only for hours actually worked on the qualifying shift and shall not be paid during paid leave, vacation, or compensatory time off. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Article 7 — Specialty & Premium Pay

Section 7.1. Field Training Officer (FTO). Officers actively assigned to train new recruits shall receive a flat premium of two hundred fifty dollars (\$250) per bi-weekly pay period. The FTO premium is separate from base pay and is not subject to shift differentials or holiday multipliers. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 7.2. K-9 Handler. Officers assigned as K-9 handlers shall receive a flat premium of three hundred dollars (\$300) per bi-weekly pay period in recognition of the off-duty care, feeding, grooming, and maintenance of the assigned animal, which the parties agree constitutes full compensation for such off-duty work. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be

administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 7.3. Motorcycle Pay. Officers assigned to motorcycle patrol shall receive a flat premium of one hundred fifty dollars (\$150) per bi-weekly pay period. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Section 7.4. Detective/Investigator Pay. Officers assigned to the Detective Bureau shall receive a five percent (5%) premium above their base hourly rate for the duration of the assignment. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 7.5. SWAT / Special Response. Officers assigned to the Special Response Team shall receive a flat premium of one hundred dollars (\$100) per bi-weekly pay period, plus callback pay for actual deployments. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Article 8 — Education Incentive (POST)

Section 8.1. Intermediate POST Certificate. Employees holding a valid Intermediate POST certificate shall receive an education incentive of five percent (5%) of base salary, payable each pay period in which the certificate remains valid. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Section 8.2. Advanced POST Certificate. Employees holding a valid Advanced POST certificate shall receive an education incentive of seven and one-half percent (7.5%) of base salary, in lieu of and not in addition to the Intermediate incentive. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 8.3. Tuition Reimbursement. The City shall reimburse up to two thousand dollars (\$2,000) per fiscal year for approved job-related coursework completed with a grade of C or better, subject to prior written approval by the Chief of Police. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 8.4. Training Time. Time spent in mandatory training shall be compensated as hours worked. Voluntary training approved by the Department shall be compensated at the straight-time rate. Payments and benefits under this section shall be administered through the City's regular payroll

process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Article 9 — Uniform & Equipment Allowance

Section 9.1. Uniform Allowance. Each sworn employee shall receive an annual uniform allowance of one thousand two hundred dollars (\$1,200), paid in two equal installments in January and July, for the purchase, cleaning, and maintenance of required uniforms and safety equipment. The allowance shall be prorated for employees hired mid-year. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 9.2. Body Armor. The City shall provide and replace ballistic vests on a five-year cycle or upon manufacturer expiration, whichever occurs first, at no cost to the employee. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Section 9.3. Damaged Property. The City shall repair or replace an employee's personal property, including prescription eyewear and watches, damaged in the line of duty, up to five hundred dollars (\$500) per incident. Records necessary to administer this section shall be maintained by the

Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Article 10 — Health & Welfare

Section 10.1. Medical Insurance. The City shall contribute up to one thousand eight hundred dollars (\$1,800) per month toward the employee's selected medical plan for family coverage, and a proportionate amount for employee-only and employee-plus-one coverage. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 10.2. Retirement. Employees participate in the CalPERS 3% at 50 formula for classic members and the applicable PEPRA formula (2.7% at 57) for new members, with employee contributions as required by law. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 10.3. Deferred Compensation. The City shall match employee contributions to the 457(b) deferred compensation plan up to one percent (1%) of base salary. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only

to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Section 10.4. Retiree Medical. Employees retiring with at least twenty (20) years of service shall receive a City contribution toward retiree medical premiums equal to the PEMHCA minimum, increased annually per statute. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 10.5. Life Insurance. The City shall provide term life insurance in an amount equal to one times the employee's annual base salary. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Article 11 — Leaves of Absence

Section 11.1. Vacation. Employees accrue vacation at the rate of 3.08 hours per pay period (eighty (80) hours per year) during the first five years of service, increasing thereafter per the schedule in Appendix C. Maximum accrual is capped at two times the annual accrual rate. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices

Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Section 11.2. Sick Leave. Employees accrue sick leave at the rate of 3.7 hours per pay period (ninety-six (96) hours per year), with unlimited accrual. Sick leave may be used for the employee's own illness or to care for an ill immediate family member. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 11.3. Bereavement Leave. Employees shall be granted up to five (5) working days of paid bereavement leave upon the death of an immediate family member as defined in Section 2.3. An additional two (2) days of accrued leave may be used at the employee's discretion where travel in excess of five hundred (500) miles is required. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 11.4. Family & Medical Leave. Leave shall be administered in accordance with the Family and Medical Leave Act and the California Family Rights Act, providing up to twelve (12) weeks of job-protected leave in a rolling twelve-month period. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Section 11.5. Military Leave. Military leave shall be granted in accordance with USERRA and applicable California law. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 11.6. Association Leave. The Association shall be granted a bank of eighty (80) hours per fiscal year for use by designated representatives in the conduct of Association business. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Article 12 — Grievance Procedure

Section 12.1. Definition. A grievance is an alleged violation, misinterpretation, or misapplication of a specific provision of this Memorandum of Understanding. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Section 12.2. Steps. Grievances shall proceed through four steps: (1) the immediate supervisor, (2) the Division Commander, (3) the Chief of Police, and (4) binding arbitration before a neutral arbitrator selected by mutual agreement or by striking from a list provided by the State Mediation and Conciliation Service. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy,

this Memorandum of Understanding shall control. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 12.3. Time Limits. A grievance must be filed in writing within fifteen (15) calendar days of the event giving rise to it, or within fifteen (15) days of when the employee reasonably should have known of the event. Failure by the City to respond within the prescribed time shall advance the grievance to the next step. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 12.4. Costs. The fees and expenses of the arbitrator shall be shared equally by the parties. Each party shall bear the cost of its own representation. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Article 13 — Management Rights

Section 13.1. The City retains all rights not expressly limited by this MOU, including but not limited to the right to direct the workforce, determine staffing levels and organizational structure, schedule shifts, establish standards of service, and take disciplinary action for just cause. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of

Understanding shall control. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 13.2. Nothing herein shall be construed to limit the City's authority to respond to emergencies as determined in its sole discretion, provided that the exercise of such authority shall not permanently alter terms within the scope of representation without meeting and conferring. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Article 14 — Hours of Work & Scheduling

Section 14.1. Work Schedules. The Department may assign 4/10, 3/12.5, or 5/8 work schedules. Any change to an established schedule requires thirty (30) days' notice and an opportunity to meet and confer over the impacts. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Section 14.2. Shift Bidding. Shift assignments shall be bid by seniority within classification twice per year, subject to the Department's right to assign up to twenty percent (20%) of positions based on

operational need. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 14.3. Rest Between Shifts. Employees shall receive a minimum of eight (8) hours of rest between assigned shifts, except in emergencies. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 14.4. Meal Periods. Employees shall receive an uninterrupted thirty (30) minute paid meal period during each shift, subject to call for service. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Article 15 — Discipline & Due Process

Section 15.1. Just Cause. No employee shall be disciplined, suspended, demoted, or discharged except for just cause. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit

an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 15.2. Peace Officers Bill of Rights. All investigations and disciplinary actions shall comply with the Public Safety Officers Procedural Bill of Rights Act (Government Code §3300 et seq.), including the right to representation. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Section 15.3. Personnel Files. Employees shall have the right to review their personnel file upon reasonable notice and to attach a written response to any adverse material. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Article 16 — Layoff & Seniority

Section 16.1. Order of Layoff. In the event of layoff, employees shall be laid off in inverse order of seniority within the affected classification, after the separation of temporary and probationary employees. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors

shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 16.2. Recall. Laid-off employees shall be maintained on a recall list for twenty-four (24) months and recalled in order of seniority as vacancies occur. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 16.3. Notice. The City shall provide thirty (30) days' written notice of layoff and shall meet and confer over the impacts. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Article 17 — Safety & Equipment

Section 17.1. The City shall provide and maintain all equipment necessary for the safe performance of duties, in compliance with Cal/OSHA standards. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The

parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 17.2. Take-Home Vehicles. Officers residing within twenty-five (25) miles of City limits and assigned to specialty units may be authorized a take-home vehicle. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Section 17.3. Safety Committee. A joint labor-management safety committee shall meet quarterly to review incidents and recommend corrective action. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Article 18 — Drug & Alcohol Policy

Section 18.1. Testing shall be conducted only upon reasonable suspicion documented in writing by a supervisor trained in impairment recognition, or following a critical incident. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Section 18.2. An employee who voluntarily discloses a substance abuse problem prior to testing shall be referred to the Employee Assistance Program without discipline for the disclosure itself. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Article 19 — Probation & Promotion

Section 19.1. Probation. Newly appointed officers shall serve a probationary period of eighteen (18) months; promoted employees shall serve twelve (12) months. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Section 19.2. Promotional Examinations. Promotional processes shall consist of a written examination, an oral board, and a departmental assessment, weighted 30/40/30. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable.

Section 19.3. Eligibility Lists. Promotional eligibility lists shall remain in effect for twenty-four (24) months. The parties further agree that implementation of this section shall not result in a reduction of

any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law.

Article 20 — Outside Employment

Section 20.1. Employees may engage in outside employment with prior written approval of the Chief of Police, provided such employment does not conflict with duties, exceed twenty (20) hours per week, or involve the sale of alcohol. The parties acknowledge that this provision was reached through good-faith negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control.

Section 20.2. Approval may be revoked where outside employment is found to interfere with the employee's performance or the Department's operations. The Association expressly reserves all rights afforded under Government Code section 3500 et seq. Neither the exercise nor the non-exercise of any right under this section shall constitute a waiver of that right, nor shall any past practice inconsistent with the express terms of this section be deemed to modify those terms. The parties agree that this section shall be interpreted in a manner consistent with the Fair Labor Standards Act where applicable. Supervisors shall administer this section uniformly and without discrimination on the basis of any protected classification. Alleged violations shall be addressed through the grievance procedure, provided that nothing herein shall limit an employee's right to pursue statutory remedies before the appropriate administrative agency or court of competent jurisdiction.

Article 21 — Term & Reopeners

Section 21.1. Term. This MOU shall be effective July 1, 2024 and shall remain in full force and effect through June 30, 2027, and thereafter from year to year unless either party serves written notice of intent to modify. The parties acknowledge that this provision was reached through good-faith

negotiation pursuant to the Meyers-Milias-Brown Act. Nothing in this section shall be construed to waive any right afforded by state or federal law. Any dispute arising under this section shall be subject to the grievance procedure set forth in Article 12. Where a conflict exists between this section and a departmental policy, this Memorandum of Understanding shall control. In the event that any federal or state statute, regulation, or judicial decision materially affects the operation of this section, the parties shall meet within thirty (30) calendar days to negotiate conforming amendments. Pending such negotiation, the affected provision shall be administered in the manner most consistent with the parties' original intent, to the extent permitted by law. The parties further agree that implementation of this section shall not result in a reduction of any benefit in effect on the effective date of this Agreement, and that any ambiguity shall be resolved in a manner consistent with past practice where such practice is documented, mutually known, and consistently applied. The City shall provide the Association with not less than fourteen (14) calendar days' written notice prior to implementing any change in the administration of this section, and shall upon request meet and confer regarding the impacts of such change.

Section 21.2. Reopener. Either party may reopen negotiations on wages (Article 3) and one additional article of its choosing in the final year of the term. Payments and benefits under this section shall be administered through the City's regular payroll process and reported to CalPERS only to the extent such compensation is reportable as special compensation under Title 2 CCR section 571 or its successor. The parties make no representation as to the pensionability of any item of compensation, and any determination by CalPERS shall control. Records necessary to administer this section shall be maintained by the Department and made available to the Association upon reasonable written request, subject to the privacy protections of the California Public Records Act and the Information Practices Act. Nothing in this section obligates either party to disclose materials protected by the attorney-client privilege, the attorney work-product doctrine, or the official information privilege.

Appendix A — Salary Schedule (Effective July 1, 2024)

The following hourly base rates apply to each classification and step. Rates are exclusive of premiums, differentials, and incentives.

Classification	Step A	Step B	Step C	Step D	Step E
Police Officer	\$42.00	\$44.10	\$46.30	\$48.00	\$50.40
Police Officer (Lateral)	\$44.10	\$46.30	\$48.00	\$50.40	\$52.90
Corporal	\$47.00	\$49.35	\$51.80	\$52.00	\$56.10
Sergeant	\$53.00	\$55.65	\$58.00	\$61.35	\$64.40
Detective	\$46.00	\$48.30	\$50.70	\$53.20	\$55.90
K-9 Handler	\$45.00	\$47.25	\$49.60	\$52.10	\$54.70
Traffic/Motorcycle	\$45.50	\$47.75	\$50.15	\$52.65	\$55.30
School Resource Officer	\$44.00	\$46.20	\$48.50	\$50.90	\$53.45

Dispatcher I	\$28.00	\$29.40	\$30.90	\$32.40	\$34.00
Dispatcher II	\$31.00	\$32.55	\$34.20	\$35.90	\$37.70
Community Service Officer	\$26.00	\$27.30	\$28.70	\$30.10	\$31.60
Property & Evidence Tech	\$27.50	\$28.90	\$30.30	\$31.80	\$33.40

Appendix B — Recognized Holidays

The following twelve (12) holidays are recognized for purposes of Article 5.

Holiday	Observed
New Year's Day	January 1
Martin Luther King Jr. Day	Third Monday in January
Presidents' Day	Third Monday in February
Cesar Chavez Day	March 31
Memorial Day	Last Monday in May
Juneteenth	June 19
Independence Day	July 4
Labor Day	First Monday in September
Veterans Day	November 11
Thanksgiving Day	Fourth Thursday in November
Day after Thanksgiving	Fourth Friday in November
Christmas Day	December 25

Appendix C — Vacation Accrual Schedule

Vacation accrues per Section 11.1 according to the following schedule.

Years of Service	Hours per Pay Period	Annual Hours
0 through 5 years	3.08	80
6 through 10 years	4.62	120
11 through 15 years	5.54	144
16 through 20 years	6.15	160
21 or more years	6.77	176